

Subhash Singha vs Rohit Singha And Others on 25 June, 2024

Neutral Citation No.(2024:HHC:3923).

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA .

RSA No.146 of 2022

Reserved on 21.05.2024

Date of Decision:- 25.06.2024

Subhash Singha

Versus

.....App

Rohit Singha and others

.....Respo

Coram

Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting?1 Yes.

For the Appellant : Mr. Parav Sharma, Advocate, for the appellant.

For Respondents : Mr. Janesh Gupta, Advocate, for respondents No.1, 2, 4 and 5.

Rakesh Kainthla, Judge.

The present appeal is directed against the judgment and decree dated 23.03.2022 passed by the learned Additional District Judge Kinnaur at Rampur Bushahr, H.P., (learned First Appellate Court), vide which the appeal filed by the appellant (plaintiff before the learned trial Court) was dismissed. (Parties Whether reporters of Local Papers may be allowed to see the judgment? Yes.

shall hereinafter be referred to in the same manner as they were arrayed before the learned Trial Court for convenience.

2. Briefly stated, the facts giving rise to the present appeal are that the plaintiff filed a civil suit before the learned Trial Court seeking a declaration that the Will bearing Registration No.27/2003 stated to have been executed and registered on 24.06.2003 qua the land comprised in Khata No.46, Khatuni Nos.47/95 to 101 situated at Mohal Kotgarh, Khata No.28/Khatuni No.59 situated at Mohal Challan, Khata No.29 Khatuni Nos. 61 to 64 situated at Mohal Challan. Khata No.48 min, Khatuni No.79 situated at Mohal Kingal, Khata No.62, Khatuni Nos. 159 to 162 situated at Mohal Nahal, Tehsil Distt. Kumarsain, Distt. Shimla, H.P. (hereinafter referred to as the suit land) is void ab initio because of the fraud practised by the defendants upon the testator Budh Ram. A consequential relief of permanent prohibitory injunction for restraining the defendants from interfering with the possession of the plaintiff over the suit land was also sought. It was asserted that Budh Ram (since deceased) was the owner in possession of the suit land. He died on 12.01.2012. He used to reside with the defendants during his lifetime. He never intended to execute any testamentary document in favour of his legal heirs. The .

plaintiff is the son of the testator. The defendants are the sons and mother of the plaintiff and the proforma defendant is the sister of the plaintiff. The plaintiff came to know about the fraud committed by the defendants in October 2014, when he found out that the defendants had propounded a registered Will No.27/2003 stated to have been executed on 24.06.2003 by the deceased Budh Ram in their favour. Budh Ram was in his advanced stage. His mental difficulties were adversely affected.

He had poor eyesight and was also hard of hearing. The defendants prevailed upon him to execute the Will in their favour. The testator resided with the plaintiff till 2004 and thereafter with the defendants till his death. The defendants took advantage of the dependency of Budh Ram upon them to get the Will executed in their favour. The plaintiff has four children: Rohit Singha, Mohit Singha, Sumit Singha and Sonali Singha. The testator has not given any reason for disinheriting Sumit Singha and Sonali Singha from the ancestral property.

The recitals in the Will are not natural. The suit land is ancestral and could not have been bequeathed by way of a Will.

Plaintiff/defendant No.4 and proforma defendant are the .

natural legal heirs of the deceased and are entitled to succeed to Budh Ram's estate. The plaintiff requested the defendants to hand over the possession of the suit land to him, but in vain.

Hence, the suit was filed to seek the relief mentioned above.

3. The suit was opposed by the defendants by filing a written statement taking preliminary objection regarding the suit being barred by limitation. The contents of the plaint were denied on merits. It was specifically denied that the nature of the suit land was ancestral in the hands of the Budh Ram. It was asserted that the suit land was self-acquired property of the Budh Ram. The deceased Budh

Ram died on 12.01.2012 at his native place Matal near Kingal. The defendants performed his last rites. The plaintiff did not participate in the last rites of Budh Ram. The plaintiff left his father's house and settled at Rampur in the company of a woman after leaving his legally wedded wife and two sons. Budh Ram used to take care of the plaintiff's wife and children. He used to say that the plaintiff had started residing with some woman at Rampur without his consent; therefore, he never wanted to give a share of his property to the plaintiff. It was denied that the deceased had .

poor eyesight or he was hard of hearing. It was asserted that he had sound health till his death and he used to take care of the defendants. He executed the Will in their favour in his sound disposing state of mind. Therefore, it was prayed that the suit be dismissed.

4. A replication denied the contents of the written statement and affirming those of the plaint was filed.

5. The learned Trial Court framed the following issues on 07.06.2016:-

"1. Whether registered Will No.27/2003 registered on 24.06.2003 of deceased Budh Ram is illegal, null and void, as alleged? OPP....

2. Whether mutation Nos.128, 145 dated 27.02.2012 and mutation No.186 dated 05.05.2012 regarding inheritance of Budh Ram are illegal, null and void, as alleged? OPP....

3. Whether Will dated 24.06.2003 of Budh Ram is shrouded with suspicious circumstances, as alleged? OPP....

4. Whether Will dated 24.06.2003 is a result of fraud, coercion or undue influence, as alleged?OPP....

5. Whether suit land was ancestral in the hands of the deceased, if so its effect, as alleged? OPP....

6. Whether the plaintiff is entitled for decree of declaration, as prayed for? OPP....

7. Whether the plaintiff is entitled for a decree of .

injunction, as prayed for?OPP....

8. Whether registered Will No.27/2003 registered on 24.06.2003 of deceased Budh Ram is legal and valid, as alleged?OPD....

9. Whether the suit is not maintainable, as alleged?OPD....

10. Whether the suit is barred by limitation, as alleged?

OPD....

11. Relief".

6. The parties were called upon to produce the evidence and the plaintiff examined Vijay Kumar (PW-1), Khem Raj (PW-2), Dalip Kumar (PW-3), Monika Rathore (PW-4), Surat Ram (PW-5), Subhash Singha (PW-6), Sudhir Prakash (PW-7), Raman Sharma (PW-8), and Vineet Bhaik (PW-9). The defendants examined defendant No. 3 Nirmala Singha (DW-1) and Amin Chand (DW-2).

7. The learned Trial Court held that the execution of the Will was duly proved by the attesting witnesses. The plaintiff examined Vineet Bhaik (PW-9), one of the attesting witnesses, who also supported the case of the defendant regarding the execution of the Will. Ami Chand Sharma (DW-2) also supported the execution of the Will. There was no evidence to show that Budh Ram was not in a sound disposing state of mind. Budh Ram had given a valid reason for disinheriting the plaintiff.

.

There was insufficient evidence to prove fraud, misrepresentation or coercion. There was no evidence to show that the suit land was inherited by Budh Ram from his male ancestors and the plaintiff's plea that the suit land was ancestral and no Will could have been executed regarding the same was not acceptable. Hence, the learned Trial Court held issue No.5 as not proved, issues Nos.8 & 9 in affirmative, rest of the issues in negative and dismissed the suit of the plaintiff.

8. Being aggrieved from the judgment and decree passed by the learned Trial Court, the plaintiff filed an appeal, which was decided by learned Additional District Judge (learned First Appellate Court). The learned First Appellate Court concurred with the findings recorded by the learned Trial Court that the plaintiff had failed to prove the ancestral nature of the suit land. The execution of the Will was duly proved as per the law and the plea of the plaintiff that the Will was executed by practising fraud, misrepresentation and coercion upon the deceased was not proved; therefore, the appeal was dismissed.

9. Being aggrieved from the judgment and decree passed by the learned Courts below, the present appeal has been .

filed proposing the following substantial questions of law:-

1. Whether there is misappreciation of the evidence on the record by both the Ld. Courts below same has resulted in erroneous decision?
2. Whether the judgment and decree passed by both the Ld. Courts below are contrary to the pleading of the parties and the findings given are perverse and the same has resulted into an erroneous decision?

3. Whether the Ld. Courts below have made out a new case in favour of the respondent/defendant by wrongly holding that the alleged Will No.27/2003 dated 24.06.2003 Exhibit DW2/D is not a result of fraud and misrepresentation, ignoring the material on the record and the same has resulted into impugned judgment?

4. Whether the impugned decision is contrary to the parties and evidence on record and also contrary to the law pertaining to the valid execution of the Will?

5. Whether the conclusion drawn by the Ld. Courts below are erroneous, contrary to law of evidence as well as the Hindu Succession Act?

6. Whether the alleged Will is surrounded by suspicious circumstances and the same is outcome of fraud and misrepresentation resulted into impugned judgment?

7. Whether the suit land is the ancestral/coparcenary property can be Will out beyond the share of the person contrary to Hindu Law?

10. I have heard Mr. Parav Sharma, learned counsel for the appellant/plaintiff and Mr. Janesh Gupta, learned counsel for .

the respondents/defendants No. 1 to 4 and 5.

11. Mr. Parav Sharma, learned counsel for the appellant/plaintiff submitted that the learned Courts below erred in dismissing the suit. There was no valid reason for the exclusion of the plaintiff and his children. The Will was shrouded by suspicious circumstances and the due execution of the Will was not proved. The plaintiff had proved the ancestral nature of the suit land and learned Courts below erred in holding that the suit land was self-acquired in the hands of the deceased; therefore, he prayed that the appeal be admitted on the proposed substantial questions of law.

12. Mr. Janesh Gupta, learned counsel for the respondents/defendants supported the judgments and decrees passed by learned Courts below and submitted that no interference is required with the same.

13. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

14. The plaintiff prayed that the suit land was ancestral in the hands of Budh Ram. It was laid down by Hon'ble Supreme .

Court in Bhagwat Sharan v. Purushottam, (2020) 6 SCC 387 that the burden lies upon the person to prove the ancestral nature of the property who asserts so. It was observed as under:-

"10. At the outset, we may note that a lot of arguments were addressed and judgments were cited on the attributes of HUF and the manner in which it can be

constituted. In view of the facts narrated above, in our view, a large number of these arguments and citations need not be considered. The law is well settled that the burden is on the person who alleges that the property is a joint property of a HUF to prove the same. Reference on this behalf may be made to the judgments of this Court in *Bhagwan Dayal v. Reoti Devi* [*Bhagwan Dayal v. Reoti Devi*, AIR 1962 SC 287]. Both the parties have placed reliance on this judgment. In this case, this Court held that the general principle is that a Hindu family is presumed to be joint unless the contrary is proved. It was further held that where one of the coparceners separated himself from other members of the joint family there was no presumption that the rest of the coparceners continued to constitute a joint family. However, it was also held that at the same time there is no presumption that because one member of the family has separated, the rest of the family is no longer a joint family. However, it is important to note that this Court in *Bhagwati Prasad Sah v. Dulhin Rameshwari Kuer* [*Bhagwati Prasad Sah v Dulhin Rameshwari Kuer*, 1951 SCC 486: 1951 SCR 603], held as follows : (SCC p. 491, para 10) "10. ... Except in the case of reunion, the mere fact that separated coparceners chose to live together or act jointly for purposes of business or trade or in their dealings with properties, would not give them the status of coparceners under the Mitakshara law."

XXXXXX

12. In *D.S. Lakshmaiah v. L. Balasubramanyam* [*D.S. Lakshmaiah v. L. Balasubramanyam*, (2003) 10 SCC 310] this Court held as follows : (*D.S. Lakshmaiah case* [*D.S. Lakshmaiah v. L. Balasubramanyam*, (2003) 10 SCC 310], SCC p. 317, para 18) "18. The legal principle, therefore, is that there is no presumption of property being joint family property only on account of the existence of a joint Hindu family. The one who asserts has to prove that the property is a joint family property. If, r however, the person so asserting proves that there was a nucleus with which the joint family property could be acquired, there would be a presumption of the property being joint and the onus would shift on the person who claims it to be self-acquired property to prove that he purchased the property with his funds and not out of joint family nucleus that was available."

Similar view was taken in *Rukhmabai v. Lala Laxminarayan* [*Rukhmabai v. Lala Laxminarayan*, (1960) 2 SCR 253: AIR 1960 SC 335] and *Appasaheb Peerappa Chamdgade v. Devendra Peerappa Chamdgade* [*Appasaheb Peerappa Chamdgade v. Devendra Peerappa Chamdgade*, (2007) 1 SCC 521]. The law is thus well settled that the burden lies upon the person who alleges the existence of the Hindu Undivided Family to prove the same".

15. Therefore, the burden was upon the plaintiff to prove the ancestral nature of the property.

16. The plaintiff relied upon the copies of mutation (Ex.

PW6/B & 6/C), and jamabandis (Ex. PW2/C, Ex. PW4/A, PW4/B, .

Ex PW5/A to Exhibit PW5/D) to support his claim; however, learned Courts below had rightly pointed out that Budh Ram was shown to be the owner in these documents and they do not prove that Budh Ram had acquired the suit land from his male ancestors. No other evidence was led to show that Budh Ram had obtained the suit land from his father or grand-father or great grand-father. Hence, the plea that the suit land was ancestral in the hands of Budh Ram was not proved on record and the learned Courts below had rightly held that the nature of the suit property was self-acquired in the hands of Budh Ram.

17. Even assuming that the suit land is ancestral, there is no prohibition to execute the Will regarding ancestral property.

It was laid down by this Court in *Raksha Kumari v. Chain Singh*, 2019 SCC OnLine HP 2014: AIR 2019 H.P. 96 that a male Hindu governed by Mitakshra Law is not debarred from making a Will in respect of the coparcenary/ancestral property. It was observed:

11. Without going into the question whether the property in question was ancestral or not and assuming the same to be ancestral, it would be noticed that the issue raised in .

this appeal is no longer *res Integra* in view of the judgment rendered by a Co-ordinate Bench of this Court in *Kartari Devi and others versus Tota Ram*, (1992) 1 ShimLC 402 and thereafter the ratio laid down therein was upheld and approved by a learned Division Bench of this Court in *Tek Chand versus Mool Raj*, 1997 2 Hindu LR 306 and both these judgments, in turn, have been approved by the Hon'ble Supreme Court in *Sham Lal alias Kuldip versus Sanjeev Kumar and others*, (2009) 12 SCC 454 wherein it was observed as under:-

"26. There is no denying that the property in the hands of the deceased Balak Ram was ancestral since admittedly he had inherited the same from his father. In so far as the question whether under the custom governing the parties, a Will could be executed in respect of the ancestral property is concerned, the same is no more *res integra*.

27. A learned Single Judge of the High Court in *Kartari Devi and Ors. v. Tota Ram*, (1992) 1 ShimLC 402 has held that in view of section 30 read with section 4 of the Hindu Succession Act, 1956 a male Hindu governed by the Mitakshara system is not debarred from making a Will in respect of coparcenary/ancestral property. The above view of the learned Single Judge was upheld and approved by a Division Bench of the High Court in *Tek Chand v. Mool Raj*, 1997 2 Hindu LR 306. (Hindu LR p.310, para 14). In view of the above ratio, the learned District Judge has erred in upholding the validity of the Will Ex. DW 1-A only to the extent of the interest of the deceased in the property. Such findings are wrong and liable to be set aside.

12. Thus, what stands now firmly laid down by the Hon'ble Supreme Court is that a male Hindu governed by 'Mitakshara' Law is not debarred from making a Will in

respect of coparcenary/ancestral property."

18. Thus, in view of the judgment of this Court a male .

Hindu governed by 'Mitakshara' is not debarred from making a Will. Therefore, this question has already been decided by this Court and does not arise in the present case.

19. Nirmala Singha (DW-1) wife of the testator and mother of the plaintiff stated in her proof affidavit that Rohit Singha, Mohit Singha and their mother Nirmala used to serve the testator. The testator was happy with them. Her son Subhash Singha left the village and started residing with some woman at Rampur. He did not maintain any relations with his wife and children due to which the testator was unhappy with him. Her son resided with her in the year 2004 and looked after her. He looked after the property when he was residing in the Village but he never returned after he had left the home. She was not aware that her husband had executed the Will because her son had married a girl of a different caste and two children were born to them. She volunteered to say that the Will was executed voluntarily by her husband. She denied that they had turned out their son out of their home and did not maintain any relationship with him.

.

20. The suggestion given to this witness that the Will was executed by the testator because he was not happy with the inter-caste marriage of his son is in accordance with the recital of the Will that the plaintiff (son of the testator) was living on his own. This is also as per the admission made by the plaintiff in his cross-examination that he is residing with a woman to whom he has not married and two children are born with her.

Thus, the Will has given a valid reason for the exclusion of the plaintiff and the submission that the Will does not provide the reasons for excluding the plaintiff is not correct.

21. Vineet Bhaik (PW-9) stated that Budh Ram called him in the year 2003. He (Vineet Bhaik) was a witness to the Will. He did not remember who had written the Will. The Will was already written before his arrival. It was read over and explained to the testator in his presence. He identified his signatures (Ex. DW/2/B1) on the Will. Budh Ram stated that he was executing a Will in favour of his grandchildren and had not mentioned his children. The signatures were put by two witnesses in the presence of Budh Ram. He stated in his cross-

examination that he had signed the Will with his pen, and he .

had also mentioned his address with his pen. He identified the signatures of Budh Ram. Ami Chand also signed on the Will in his presence. Budh Ram also signed on the Will in their presence. The Will was read over and explained to Budh Ram, who acknowledged it to be correct. He knew Budh Ram who had served as a public servant but could not name the department.

Budh Ram had retired. He had no pressure of any kind. He did not remember the name of the identifier. The other witness and Budh Ram appeared before the Sub-Registrar where the Will was read over and explained to them.

22. Learned Courts below had rightly held that the testimony of the witness proved the due execution of the Will.

He specifically stated that the Will was read over and explained to deceased Budh Ram, who acknowledged the same to be correct. He admitted his signatures and the signatures of the other attesting witness Ami Chand in the presence of Budh Ram.

He also admitted that Budh Ram had signed the Will in their presence. He was put forward as a witness of truth by the plaintiff and there is no reason to doubt his testimony. Hence, the learned Courts below had rightly relied upon his testimony .

to hold that his testimony proved the due execution of the Will.

23. Ami Chand (PW-2) is another marginal witness to the Will. He stated in his proof affidavit that he knew Budh Ram, who had retired from the Horticulture Department. Budh Ram used to meet him because he had a shop at Kumarsain. Budh Ram used to visit Kumarsain almost daily. Budh Ram executed a Will in favour of his grandchildren and his wife on 24.06.2003.

This Will was prepared by Krishan Kant Sharma, Budh Ram was healthy and in a sound disposing state of mind. The Will was read over and explained to Budh Ram who put his signature on the Will in his presence and in the presence of another witness.

The witnesses also signed in the presence of Budh Ram. He stated in his cross-examination that he had studied up to 8 th Class and had not deposed in any other case. Budh Ram had one son and one daughter. He did not know about the grandchildren of Budh Ram. Budh Ram and witnesses were present at the time of the execution of the Will. He denied that Rohit Singha and Mohit Singha were present at the time of the execution of the Will. Budh Ram stated that he wanted to bequeath his property in favour of his grandchildren. He was disinheriting his son .

because the son not visiting him (Budh Ram). He admitted that the plaintiff remained with his parents till 2004. He had not seen the plaintiff working in the field. He denied that no Will was executed in his presence. All of them reached in the office of the Sub-Registrar within 15 minutes at about 01:45 pm. Sub-

Registrar explained the Will to Budh Ram who acknowledged it to be correct. He denied that the Budh Ram was hard of hearing and his eyesight was not proper.

24. There is nothing in the cross-examination of the witness to show that he is making an incorrect statement. He has specifically mentioned that Budh Ram had put signatures in his presence and in the presence of Vineet Bhaik. This statement is corroborated by the statement of Vineet Bhaik, who

had also stated the same fact. His statement that Budh Ram had retired from the Horticulture Department is supported by the cross-

examination of the plaintiff where he admitted that Budh Ram was serving in the Horticulture Department. His statement that Budh Ram was healthy and was in a sound disposing state of mind is also corroborated by the cross-

.

examination of the plaintiff wherein he admitted that his father remained healthy till the date of his death. He again stated that his father remained ill for 20-22 years but that is an afterthought not supported by any material.

Moreover, the plaintiff admitted that he had left the home in the year 2004 and he would not be in a position to know about the physical condition of his father. He did not produce any medical record to show that his father was not in his sound disposing state of mind at the time of the execution of the Will. It was laid down in *Ashok Bauri v.*

State, 2021 SCC OnLine Del 1248= 2021 (279) DLT 561 that there is a presumption in favour of sanity and the burden lies on the person who challenges it to prove that the person was insane. It was observed:

"8. Soundness of mind, for the purposes of contracting, is defined in Section 12 of the Indian Contract Act, 1872 and which in my view would have application in the matter of soundness of mind requisite for making of a Will as well. As per the said provision, (i) a person is said to be of sound mind, if, at the time of the making of the contract, he is capable of understanding it and of forming a rational judgment as to its effect upon his interests;

(ii) a person who is usually of unsound mind, but .

occasionally of sound mind, may make a contract when he is of sound mind; and, (iii) a person who is usually of sound mind, but occasionally of unsound mind, may not make a contract when he is of unsound mind.

9. As would be obvious from the above, a common thread is found to run between Section 12 of the Contract Act and Section 59 of the Indian Succession Act.

10. Chapter VII titled "Of the Burden of Proof", of Part III titled "Production and Effect of Evidence", of the Evidence Act deals with the issue with which this Court is concerned herewith. Per Section 101 thereunder, whosoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts, which he asserts, must prove that those facts exist. Since the propounder of a Will as per Section 59 of the Indian Succession Act is required to prove that the testator at the time of the making of the Will was of sound mind, the burden of proof would be on the propounder.

However, that would be so where none is opposing the Will propounded and the Will has to be proved for the satisfaction of the Court. However when a document propounded as a Will is contested, what would be required to be proved is only what is in issue and only if the party disputing the document propounded as a Will disputes/controverts that the testator/testatrix, at the time of making the Will was of sound mind, would soundness of mind be in issue and required to be proved. However, if the soundness of mind is not specifically denied then as per the Rules aforesaid contained in Order VIII Rule 5 of the CPC, soundness of mind shall be deemed to have been admitted. In the event of denial of the soundness of mind, the question as herein arises, on whom the onus should be, whether on the .

propounder or the opposite party, arises.

11. Section 114 under the aforesaid Chapter VII of Part III of the Evidence Act enables the Court to presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the case.

12. The common course of natural events and human conduct is soundness of mind and unsoundness of mind an aberration. If a testator/testatrix has led a normal life, and performed day-to-day functions in the normal course of human conduct, the presumption under Section 114 would be of soundness rather than unsoundness of mind."

25. It was laid down by this Court in *Shanti Devi vs. Dali Devi & Anr* 2002(2) SLJ 1095 that the old age of the executant does not show that he was not in a sound disposing state of mind. It was observed:-

"16. The second contention of Mr Bhardwaj. learned counsel for the appellant, that Munshi Ram was 90 years of age and therefore, was not in disposing mind at the time of execution of the Will is concerned, it has no substance. There is nothing on record to show that the testator was not in sound disposing mind at the time of execution of the Will. It is true that the validity of a will depends on the testator being of sound disposing mind at the time of the making of the Will but at the same time, a sound disposing mind does not depend upon the advanced age. The mere fact that Munshi Ram was 90 years of age at the time of execution of .

the will, would not lead to the conclusion that he was not in sound disposing mind. In *Tirath Singh & Ors v. Sajjan Singh (Died)* through his LRs & Ors. 1998(1) S.L.J. 232 it was held that mere advanced age Will does not lead to any presumption that the testator was not of sound disposing mind. The very fact that the Will in question was got registered by the testator on the same date shows that the testator was of sound disposing mind at the relevant time. See *Gurpal Singh v. Darshan Singh* 1998 (1) S.L.J. 174. Mr Bhardwaj. learned counsel for the appellant was unable to point out any evidence on record except that of a self-serving statement of the plaintiff, that the testator was not of sound disposing mind. There is no merit in the contention that the

appellant was mentally incapacitated to execute a valid Will.

26. This position was reiterated in Om Prakash & others Vs. Bhup Singh & others 2009 HLJ 106 wherein it was observed:-

"6. The mere fact that the testator was old does not conclusively establish that he was not possessed of the sound mental disposing state of mind and was not in a position to understand the disposition, which he was making. This fact had to be established by leading reliable evidence and was not a mere matter of conjecture and inference. Once the due execution of the will was established the intention of the testator as expressed in the will was to be given effect."

27. The Will was duly registered. It was laid down by this Court in Tirath Singh Versus Sajjan Singh 1988 (1) S.L.J. .

232 that the mere fact that the deceased was an old person cannot lead to any inference that he was not in a sound disposing state of mind when the Will was registered. It was observed:

"The Will was registered on December 13, 1972. It carries the endorsement of the Sub-Registrar. Harbhajan Singh Lambardar and Kartar Singh (DW.3) attesting witnesses of the Will were also present at that time. The Sub-Registrar certified that the Will was read over to Ralla who admitted the contents of it as correct and then he thumb-marked the same. From this, it has to be presumed that at the time of registration of the Will, Ralla was having a sound disposing mind and it was executed by him while in his full senses. From the mere fact that the testator of the Will, namely Ralla, was of advanced age, "no presumption can be drawn that he was not having sound disposing mind. Therefore, the contention in that respect is repelled."

28. Similar is the judgment in Gurpal Singh Versus Darshan Singh 1998 (1) S.L.J. 174 wherein it was held:

".....The Will Ext. D3 is a registered document. From this, a presumption arises that the testator of a Will was having sound disposing mind at the time of making the Will and it was executed by him especially when there is no evidence to show that at the time of execution of the Will, Phuman Singh was suffering from any mental ailment....."

29. In the present case, there is no evidence regarding the impairment of the mental faculty of the .

testator. Hence, the plea that the testator was not of a sound disposing state of mind cannot be accepted.

30. The plaintiff asserted that no reason was assigned in the Will for disinheriting his children Sumit Singha and Sonali Singha which is a suspicious circumstance. This is not acceptable. The plaintiff

admitted in his cross-examination that his sons are Rohit Singha and Mohit Singha. He was married to Nirmala Singha on 23.11.1989. She is still alive. Sonali Singha and Sumit Singha were born to Raj who was residing at Rampur.

He also admitted that he did not solemnise any marriage with Raj.

31. The Will (Ex. DW2/B) mentions that the testator had one son and one daughter, the daughter was married and was residing happily in her matrimonial home. He had given her due share at the time of her marriage and she had no claim in the testator's property. His (testator's) son also lived on his own and the testator gave him due share by providing education and self-employment. He had no claim to the property of the testator. The testator had great love & affection towards Rohit Singha and Mohit Singha, his grand-sons and sons of Subhash .

Singha. He wanted to bequeath his property in their favour and in favour of Nirmala Singha, his wife. The testator was a retired Government servant and he had sufficient pension to maintain himself and his family. His grand-sons resided with him and helped him. The recitals in the Will clearly show that the testator had specifically stated that his son was residing on his own and his grand-sons and his wife were residing with him, he was happy with them and he wanted to execute the Will in their favour.

32. It has been found out that the nature of the suit land in the testator's hand was self-acquired and the plaintiff's children had no claim in his property. The testator had assigned the reasons for excluding his children. He had mentioned the other grandchildren because they were residing with him.

Hence, it cannot be said that the execution of the Will was suspicious because the testator had not mentioned Sumit Singha and Sonali Singha.

33. The plaintiff stated in his proof affidavit (Ex.

PW-6/A) that he had a firm belief that the defendants got the .

Will executed on the pretext of taking the testator's care, and the defendants got the Will executed by pressurising the testator.

34. The averments in the proof affidavit show that these are based upon the plaintiff's belief and not upon any concrete evidence. The plaintiff himself stated in para 3 of the plaint that he came to know about the fraud in October 2014 when he found out about the Will. This shows that the plaintiff was not aware of the execution of the Will before that and he is not the best witness to depose about the fraud. It was laid down by this Court in Sohan Lal vs. Ghanshyam Latest HLJ 2016(1) (HP) 718 that the fraud has to be proved by reading cogent evidence and suspicion howsoever strong, it may be, is not sufficient to prove the fraud.

It was observed:

21. It would also be noticed that the plaintiff has miserably failed to prove the plea of fraud. It is well settled that the plea of fraud must be specifically proved and cannot be based on mere suspicion. The party alleging fraud is to establish it beyond reasonable doubt with cogent evidence and suspicion cannot be accepted as proof. Fraud like any other charge of a criminal offence whether made in civil or criminal proceedings, must be established beyond reasonable doubt and the same cannot therefore be based on suspicion and conjecture.

35. Both the learned Courts below have concurrently held that the plea of fraud is not proved. It was laid down by Hon'ble the Supreme Court in *Sukhdei v. Bairo*, (1999) 4 SCC 262:

1999 SCC OnLine SC 422, that where the findings of fraud are based upon the material on record, it is not permissible for the High Court to set it aside while exercising the jurisdiction under Section 100 of CPC. It was held:

"10. The above findings of facts arrived at by the lower appellate court while concurring with the judgment of the trial court, in our opinion, cannot be faulted since the same is borne out from the records of the case. Once we come to the conclusion that the findings of fraud arrived at by the trial court and the first appellate court is based on the material on record and there is no infirmity in arriving at the said finding, the logical conclusion is that the High Court was in error in upsetting this finding while entertaining an appeal under Section 100 of the CPC. Though the High Court has endeavoured to bring the case of the plaintiff on a question of law, as already referred to hereinabove, we are unable to agree with the High Court for the reasons already given. We having accepted the case of the defendants on the question of fraud, but in our opinion, nothing further survives for consideration in this appeal. However, we may observe that we have also carefully considered the findings of the trial court and the lower appellate court in regard to the nature of Ex. P-10 and we agree with the said finding of the trial court and the lower appellate court that the document in question is a mortgage deed and not a sale deed and that the entire amount due under the said document has been recovered by the plaintiff. Consequently, the plaintiff cannot have .

any claim based on the said document."

36. The Will was executed in the year 2003. Budh Ram had died on 16.01.2012, as per the statement of his wife. The deceased has not taken any steps to get the Will revoked during his lifetime. It was laid down by Hon'ble Supreme Court in *Savithri V/S Karthyayani Amma* 2007 (11) SCC 621, that where the testator lived for seven years and had not taken any steps to cancel the Will, it is an important circumstance to show the genuineness of the Will. It was observed:-

"The Will was admittedly registered. The testator lived for seven years after the execution of the Will. He could change his mind; he did not. The very fact that he did not take any step for cancellation of the Will is itself a factor which the Court may take into consideration for the purpose of upholding the same."

37. Learned Courts below have also pointed out that even the daughter of the deceased has not challenged the validity of the execution of the Will. These circumstances show that the plea taken by the plaintiff regarding the Will being the result of fraud, misrepresentation and coercion is not correct.

38. Both the learned Courts have concurrently found that the due execution and attestation of the Will were proven.

.

There is no suspicious circumstance surrounding the execution of the Will. It was laid down by the Hon'ble Supreme Court in *Rur Singh v. Bachan Kaur*, (2009) 11 SCC 1: (2009) 4 SCC (Civ) 387: 2009 SCC OnLine SC 320, that it is not permissible for the High Court to interfere with the concurrent findings of fact regarding the execution of the Will. It was observed:

"13. The High Court while exercising its jurisdiction under Section 100 of the Code of Civil Procedure exercises a limited jurisdiction. It may interfere with a finding of fact arrived at by the trial court and/or the first appellate court only in the event, that a substantial question of law arises for its consideration.

14. The High Court framed only one substantial question of law viz. whether the will had been duly proved and/or was otherwise genuine. It is essentially a question of fact. The learned trial Judge as also the first appellate court in opining that the will was genuine and free from suspicious circumstances inter alia took into consideration the existing materials on record viz. the parties ordinarily do not want their agricultural land to go out from the family and in that view of the matter if Kehar Singh had bequeathed his agricultural land only in favour of his sons and excluding the daughters from inheritance, no exception thereto could be taken.

18. The High Court essentially entered into the arena of appreciation of evidence. It interfered with the concurrent findings of fact arrived at by the courts below."

39. It was laid down by the Hon'ble Supreme Court in *Gurnam Singh v. Lehna Singh*, (2019) 7 SCC 641: (2019) 3 SCC .

(Civ) 709: 2019 SCC OnLine SC 374, that where the First Appellate Court had appreciated the facts regarding the execution of the Will, it is not permissible for the High Court to interfere with this findings of fact in second appeal under Section 100 of CPC. It was observed:

"15. Applying the law laid down by this Court in the aforesaid decisions to the facts of the case on hand, we are of the opinion that the High Court has erred in reappreciating the evidence on record in the second appeal under Section 100 CPC. The High Court has materially erred in interfering with the findings recorded by the first appellate court, which were on reappreciation of evidence, which was permissible by the first appellate court in the exercise of powers under Section 96 CPC. Cogent reasons, on appreciation of the evidence, were given by the first appellate court. The first appellate court dealt with, in detail, the so-called suspicious circumstances which weighed with the learned trial court and thereafter it came to the conclusion that the will, which as such was a registered will, was genuine and did not suffer from any suspicious circumstances. The findings recorded by the first appellate court are reproduced hereinabove. Therefore, while passing the impugned judgment and order [Lehna Singh v. Gurnam Singh, Civil Regular Second Appeal No. 2191 of 1985, order dated 27-11-2007 (P&H)], the High Court has exceeded its jurisdiction while deciding the second appeal under Section 100 CPC."

40. In *Kashibai v. Parwatibai*, (1995) 6 SCC 213, the High Court had interfered with the findings of fact recorded by the .

Courts regarding the validity of the Will. It was held by the Hon'ble Supreme Court that it is not permissible for the High Court to interfere with the findings of fact related to the execution of the Will while hearing the second appeal. It was observed:-

"11..... In the present case, the trial court after a close scrutiny and analysis of the evidence of Defendant 1, SmtParvati Bai, VirBhadra, Sheikh Nabi, Shivraj and GyanobaPatil who are witnesses to the Will recorded the finding that none of them deposed that Lachiram had signed the said Will before them and they had attested it. None of them except Sheikh Nabi even deposed as to when the talk about the execution of Will was held. The witness Sheikh Nabi, however, deposed that the talk about the Will also took place at the time of the talk about the adoption. But this witness too did not depose that deceased Lachiram had signed the alleged Will in his presence. In the absence of such evidence it is difficult to accept that the execution of the alleged Will was proved in accordance with law as required by Section 68 of the Evidence Act read with Section 63 of the Indian Succession Act and Section 3 of the Transfer of Property Act. It may be true as observed by the High Court that the law does not emphasise that the witness must use the language of the section to prove the requisite merits thereof but it is also not permissible to assume something which is required by law to be specifically proved. The High Court simply assumed that Lachiram must have put his signature on the Will Deed in the presence of the attesting witness Sheikh Nabi simply because the Deed of Adoption is admitted .

by the witness to have been executed on the same day.

The High Court committed a serious error in making the observations that broad parameters of Nabi's evidence would show that Lachiram executed the Will in his presence, that he signed the Will being part of the execution of the testament and this evidence in its correct background would go to show that what was required under Section 63 has been carried out in the execution of the Will. With respect to the High Court, we may say that these findings of the High Court are clearly based on assumptions and surmises and, totally against the weight of the evidence on record. The trial court on a close and thorough analysis of the entire evidence came to a proper conclusion that the Will has not been proved in accordance with the law which finding has been further affirmed by the lower appellate court after an independent reappraisal of the entire evidence with which we find ourselves in agreement as there was hardly any scope or a valid reason for the High Court to interfere with.

12. Further, it may not be out of place to mention that sub-section (1) of Section 100 of the Code of Civil Procedure explicitly provides that an appeal shall lie to the High Court from every decree passed in appeal by any court subordinate to the High Court if the High Court is satisfied that the case involves a substantial question of law. Sub-section (4) of Section 100 provides that when the High Court is satisfied that a substantial question of law is involved in any case it shall formulate that question. But surprisingly enough the High Court seems to have ignored these provisions and proposed to reappraise the evidence and interfere with the findings of fact without even formulating any question of law. It has been the consistent view of this Court that there is no jurisdiction to entertain a second appeal on the ground of an erroneous finding of fact, based on appreciation of the relevant evidence. There is a catena of .

decisions in support of this view. Having regard to all the facts and circumstances of the present case discussed above, we are satisfied that there was no justification for the High Court to interfere with the well-reasoned findings of the two courts below. Consequently, this appeal must succeed." (Emphasis supplied).

41. It was held in *Lisamma Antony v. Karthiyayani*, (2015) 11 SCC 782, that it is impermissible to interfere with the findings of fact under section 100 of CPC. It was held:

"11. It is a settled principle of law that a second appeal under Section 100 of the Code of Civil Procedure, 1908, cannot be admitted unless there is a substantial question of law involved in it. As to what is a substantial question of law, in *Kondiba Dagadu Kadam v. Savitribai Sopan Gujar* [*Kondiba Dagadu Kadam v. Savitribai Sopan Gujar*, (1999) 3 SCC 722], this Court has explained the position of law as under : (SCC pp. 725-26, para 6) "6. If the question of law termed as a substantial question stands already decided by a larger Bench of the High Court concerned or by the Privy Council or by the Federal Court or by the Supreme Court, its merely wrong application on the facts of the case would not be termed to be a substantial question of law. Where a point of law has not been pleaded or is found to be arising between

the parties in the absence of any factual format, a litigant should not be allowed to raise that question as a substantial question of law in a second appeal. The mere appreciation of the facts, the documentary evidence or the meaning of entries and the contents of the document cannot be held to be raising a substantial question of law. But where it is found that the first appellate court has assumed jurisdiction .

which did not vest in it, the same can be adjudicated in the second appeal, treating it as a substantial question of law. Where the first appellate court is shown to have exercised its discretion in a judicial manner, it cannot be termed to be an error either of law or of procedure requiring interference in the second appeal."

12. In view of the above position of law, the question formulated by the High Court in the present case, as quoted above, cannot be termed to be a question of law, much less a substantial question of law. The above question formulated is nothing but a question of fact.

Merely for the reason that on appreciation of evidence another view could have been taken, it cannot be said that the High Court can assume the jurisdiction by terming such a question as a substantial question of law.

13. Having gone through the impugned order challenged before us and after considering the submissions of the learned counsel for the parties, we are of the view that the High Court has simply re- appreciated the evidence on record and allowed the second appeal and remanded the matter to the trial court."

42. Similar view was taken in *Narendra v. Ajabrao*, (2018) 11 SCC 564, wherein it was observed:-

"17. In the first place, we find that the High Court decided the second appeal like a first appeal under Section 96 of the Code inasmuch as the High Court went on appreciating the entire oral evidence and reversed the findings of fact of the first appellate court on the question of adverse possession. Such an approach of the High Court, in our opinion, was not permissible in law.

.

18. Second, the High Court failed to see that a plea of adverse possession is essentially a plea based on facts and once the two courts, on appreciating the evidence, recorded that a finding may be of reversal, such finding is binding on the second appellate court. It is more so as it did not involve any question of law much less substantial question of law. This aspect of law was also overlooked by the High Court.

19. Third, the High Court has the jurisdiction, in appropriate cases, to interfere in the finding of fact provided such finding is found to be wholly perverse to the extent that no judicial person could ever record such finding or when it is found to be against any settled principle of law or pleadings or evidence. Such errors constitute a question of

law and empower the High Court to interfere. However, we do not find any such error here."

43. It was held in *Ramathal v. Maruthathal*, (2018) 18 SCC 303 that it is not appropriate for the High Court to disturb the concurrent findings of fact by re-appreciating the evidence and its jurisdiction is confined to the substantial question of law. It was observed:-

"13. It was not appropriate for the High Court to embark upon the task of reappraisal of evidence in the second appeal and disturb the concurrent findings of fact of the courts below which are the fact-finding courts. At this juncture, for better appreciation, we deem it appropriate to extract Sections 100 and 103 CPC, which reads as follows:

"100. Second appeal.--(1) Save as otherwise expressly provided in the body of this Code or by any other law for the time being in force, an .

appeal shall lie to the High Court from every decree passed in appeal by any court subordinate to the High Court, if the High Court is satisfied that the case involves a substantial question of law.

(2) An appeal may lie under this section from an appellate decree passed ex parte.

(3) In an appeal under this section, the memorandum of appeal shall precisely state the substantial question of law involved in the appeal.

r(4) Where the High Court is satisfied that a substantial question of law is involved in any case, it shall formulate that question.

(5) The appeal shall be heard on the question so formulated and the respondent shall, at the hearing of the appeal, be allowed to argue that the case does not involve such question:

103. Power of the High Court to determine issues of fact.-- In any second appeal, the High Court may, if the evidence on the record is sufficient, determine any issue necessary for the disposal of the appeal--

(a) which has not been determined by the lower appellate court or both by the court of first instance and the lower appellate court, or

(b) which has been wrongly determined by such court or courts by reason of a decision on such question of law as is referred to in Section 100."

14. A clear reading of Sections 100 and 103 CPC envisages that a burden is placed upon the appellant to state in the memorandum of grounds of appeal the substantial question of law that is involved in the appeal, then the High Court being satisfied that such a .

substantial question of law arises for its consideration has to formulate the questions of law and decide the appeal. Hence a prerequisite for entertaining a second appeal is a substantial question of law involved in the case which has to be adjudicated by the High Court. It is the intention of the legislature to limit the scope of a second appeal only when a substantial question of law is involved and the amendment made to Section 100 makes the legislative intent more clear that it never wanted the High Court to be a fact-finding court. However, it is not an absolute rule that the High Court cannot interfere in a second appeal on a question of fact. Section 103 CPC enables the High Court to consider the evidence when the same has been wrongly determined by the courts below on which a substantial question of law arises as referred to in Section 100. When appreciation of evidence suffers from material irregularities and when there is perversity in the findings of the court which are not based on any material, the court is empowered to interfere on a question of fact as well. Unless and until there is absolute perversity, it would not be appropriate for the High Courts to interfere in a question of fact just because two views are possible; in such circumstances, the High Courts should restrain itself from exercising the jurisdiction on a question of fact.

15. When the intention of the legislature is so clear the courts have no power to enlarge the scope of Section 100 for whatsoever reasons. Justice has to be administered in accordance with the law. In the case on hand, the High Court has exceeded its jurisdiction by reversing the well-considered judgment of the courts below which is based on cogent reasoning. The learned Judge ought not to have entered the arena of reappraisal of the evidence, hence the whole exercise done by the High Court is beyond the scope and jurisdiction conferred under Section 100 CPC."

.

44. Similarly, it was held in *C. Doddanarayana Reddy v.*

C. Jayarama Reddy, (2020) 4 SCC 659 that the High Court cannot interfere with the concurrent findings of fact unless there is perversity or the same is de hors the evidence led before the Courts:

"25. The question as to whether a substantial question of law arises has been a subject matter of interpretation by this Court. In the judgment in *Karnataka Board of Wakf v. Anjuman-E-Ismail Madris-Un-Niswan* [*Karnataka Board of Wakf v. Anjuman-E-Ismail Madris- Un-Niswan*, (1999) 6 SCC 343], it was held that findings of the fact could not have been interfered with in the second appeal. This Court held as under : (SCC pp. 347- 48, paras 12-15) "12. This Court had repeatedly held that the power of the High Court to interfere in a second appeal under Section 100 CPC is limited solely to deciding a substantial question of law if at all the same arises in the case. It has deprecated the practice of the High Court routinely interfering in pure findings of fact reached by the courts below without coming to the conclusion that the said finding of fact is either perverse or not based on material on record.

13. In Ramanuja Naidu v. V. Kanniah Naidu [Ramanuja Naidu v. V. Kanniah Naidu, (1996) 3 SCC 392], this Court held : (SCC p. 393) 'It is now well settled that concurrent findings of fact of the trial court and the first appellate court cannot be interfered with by the High Court in the exercise of its jurisdiction under Section 100 of the Civil Procedure Code. The Single Judge of the .

High Court totally misconceived his jurisdiction in deciding the second appeal under Section 100 of the Code in the way he did.'

14. In Navaneethammal v. Arjuna Chetty [Navaneethammal v. Arjuna Chetty, (1996) 6 SCC 166], this Court held : (SCC p. 166) 'Interference with the concurrent findings of the courts below by the High Court under Section 100 CPC must be avoided unless warranted by compelling reasons. In any case, the High Court is not expected to reappreciate the evidence just to replace the findings of the lower courts. ... Even assuming that another view is possible on a reappreciation of the same evidence, that should not have been done by the High Court as it cannot be said that the view taken by the first appellate court was based on no material.'

15. And again in Taliparamba Education Society v. Moothedath Mallisseri Illath M.N. [Taliparamba Education Society v. Moothedath Mallisseri Illath M.N., (1997) 4 SCC 484], this Court held : (SCC p.

486, para 5) '5. ... The High Court was grossly in error in trenching upon the appreciation of evidence under Section 100 CPC and recording reverse finding of fact, which is impermissible.'

45. Thus, it is not permissible for this Court to re-appreciate the evidence, when no perversity has been shown. Since in the present case, the learned Courts below had recorded their findings on the evidence, therefore, it is not permissible to interfere with the same.

.

46. The judgments of learned Courts below do not show any misappreciation of the evidence. The findings have been recorded as per the pleading and the evidence led before them.

The plaintiff had failed to establish his plea of fraud, coercion and misrepresentation by leading any satisfactory evidence. The conclusions drawn by learned Courts below are correct. There are no suspicious circumstances and the plaintiff failed to prove the ancestral nature of the suit property. Therefore, the proposed substantive questions of law do not arise in the present case.

47. Consequently, the present appeal cannot be admitted on the proposed substantial questions of law or any other question of law. Hence, the appeal fails and the same is dismissed. Pending miscellaneous application(s), if any, also stand disposed of.

25th June, 2024
(Manish)

(Rakesh Kainthla)
Judge

